

DISTRICT COURT, SAN MIGUEL COUNTY, STATE
OF COLORADO

305 W. Colorado Ave.
Telluride, Colorado 81435

Plaintiff,

TSG SKI AND GOLF, LLC, a Colorado Limited
Liability Corporation,

v.

Defendants,

JULIE MEEHAN FEE, an individual;
MARTINIQUE PROHASKA, an individual; and
PAUL WISOR, an individual.

Attorney for Defendant Julie Meehan Fee

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**MOTION TO STRIKE ¶¶ 41 THROUGH 52 AND TRANSCRIPT PORTION OF
EXHIBIT 2 OF FIRST AMENDED COMPLAINT PURSUANT TO C.R.C.P. 12(f)
FROM DEFENDANT JULIE MEEHAN FEE**

Defendant Julie Meehan Fee, by and through her undersigned counsel, respectfully submits
this Motion to Strike ¶¶ 41 through 52 and Transcript Portion of Exhibit 2 of First Amended
Complaint Pursuant to C.R.C.P. 12(f), as follows:

I. CERTIFICATE OF CONFERRAL

Undersigned counsel conferred with counsel for Plaintiff who opposes this Motion and the relief sought.

II. INTRODUCTION

On May 8, 2026, Plaintiff filed a First Amended Complaint. In the First Amended Complaint, Plaintiff added a number of allegations, including paragraphs 41 through 52, along with several exhibits, including Exhibit 2. Exhibit 2 consists of an Affidavit of Baylor Blanchard and a transcript of a recorded meeting occurring between Chuck Horning, Parisa Golafshan, Lupe Medonza, Defendant Martinique Prohaska, and Defendant Julie Meehan Fee (“Ms. Fee”). The meeting occurred in-person in a conference room in Newport Beach, California. The meeting was a non-public meeting containing an expectation of confidentiality. Mr. Blanchard recorded the meeting. At the time of the meeting, Ms. Fee was unaware a recording of the meeting occurred and did not consent to the recording of the meeting. California is an all-party consent state as far as the legal permissibility of recordings of meetings.

Paragraphs 41 through 52 of the First Amended Complaint and the transcript of the recorded meeting contained in Exhibit 2 simply restate allegations from Plaintiff’s First Amended Complaint. The inclusion of Paragraphs 41 through 52 and the transcript in Exhibit 2 is redundant and impertinent and merely for the purpose of attempting to inflame prejudice against Defendants, including Ms. Fee. Ms. Fee respectfully requests the Court strike Paragraphs 41 through 52 of the First Amended Complaint and the transcript of the recorded meeting contained in Exhibit 2.

III. STANDARD OF REVIEW

C.R.C.P. 12(f) provides the Court discretion to strike from any pleading, motion, or other

paper any matter deemed “redundant, immaterial, impertinent, or scandalous.” “A mass of evidence unnecessarily pleaded, legal conclusions argued at length, paragraphs seeking to retry a previous action, or obviously sham matter may be stricken.” *Koch v. Whitten*, 140 Colo. 109, 117 (Colo. 1959). Although motions to strike alleged redundant, immaterial, impertinent or scandalous matter are not favored and reasonable latitude should be allowed to a pleader in the statement of the claim, the critical inquiry is whether the matter at issue is not only immaterial but also “calculated to be harmful.” *Id.* at 117-118.

IV. ARGUMENT

A. The allegations and exhibit portion at issue are redundant of the other allegations contained in the First Amended Complaint.

Paragraphs 41 through 52 and the transcript contained within Exhibit 2 of the First Amended Complaint are redundant of the other allegations in Plaintiff’s First Amended Complaint. The paragraphs and exhibit portion at issue were added when Plaintiff amended its original Complaint and do not in any way alter Plaintiff’s theory of liability against Defendants, which asserts Defendants acted wrongfully by prolonging the ski patrol strike occurring from December 27, 2025, through January 7, 2026. *See* Motion to Dismiss First Amended Complaint from Defendant Julie Meehan Fee filed contemporaneously with the instant Motion. Indeed, Plaintiff self-characterizes the paragraphs and exhibit portion at issue as a “further elaboration” of a “theme” previously pleaded in the First Amended Complaint. *See* First Amended Complaint, at ¶ 41. Such redundancy is basis to strike the allegations and exhibit portion at issue. *See* C.R.C.P. 12(f); *Koch*, 140 Colo. at 117.

B. The allegations and exhibit portion at issue are impertinent or scandalous as they arise from an unconsented recording violating California law.

Further, paragraphs 41 through 52 and the transcript contained within Exhibit 2 of the First Amended Complaint are impertinent and scandalous as they arise from unlawfully obtained evidence.¹ The paragraphs and transcript at issue are drawn from a recording of a meeting that violates California law. Under California law:

A person who, intentionally and without the consent of all parties to a confidential communication, uses an electronic amplifying or recording device to eavesdrop upon or record the confidential communication, whether the communication is carried on among the parties in the presence of one another or by means of a telegraph, telephone, or other device, except a radio, shall be punished by a fine not exceeding two thousand five hundred dollars (\$2,500) per violation, or imprisonment in a county jail not exceeding one year, or in the state prison, or by both that fine and imprisonment . . .

For the purposes of this section, “confidential communication” means any communication carried on in circumstances as may reasonably indicate that any party to the communication desires it to be confined to the parties thereto, but excludes a communication made in a public gathering or in any legislative, judicial, executive, or administrative proceeding open to the public, or in any other circumstance in which the parties to the communication may reasonably expect that the communication may be overheard or recorded.

Cal. Penal Code § 632 (a), (c). Further, under California law, evidence obtained from unlawful recordings is inadmissible in any judicial, administrative, legislative, or other proceeding, including civil proceedings. Cal. Penal Code § 632 (d) (“ . . . evidence obtained as a result of eavesdropping upon or recording a confidential communication in violation of this section is not admissible in any judicial, administrative, legislative, or other proceeding”). California courts

¹ If Plaintiff’s lawsuit survives Ms. Fee’s motion to dismiss pursuant to C.R.C.P. 12(b)(5), Ms. Fee reserves the right to challenge the admissibility of any evidence introduced by Plaintiff as a result of the unlawfully obtained recording via further motion practice under the Colorado Rules of Evidence.

recognize that recordings obtained in violation of California Penal Code § 632 are subject to the statutory exclusionary rule in civil proceedings under § 632 (d). *See, e.g., Frio v. Superior Ct.*, 203 Cal. App. 3d 1480, 1492 (Cal. Ct. App. 1988). In *Frio*, in a contract action between a record producer and clients, the California Court of Appeals carved out a narrow exception for the admissibility of a participant's recollection of the unlawfully recorded conversations, but otherwise held, in addition to the recordings themselves, notes or transcripts of recordings surreptitiously made of telephone conversations between the record producer and clients could not be introduced as evidence where the notes were evidence obtained as result of producer's wiretap violations under California Penal Code § 632. *See id.*

On Monday, December 29, 2025, Chuck Horning, Parisa Golafshan, Lupe Medonza, Defendant Martinique Prohaska, and Ms. Fee met in-person in a conference room in Newport Beach, California. *See* First Amended Complaint, Exhibit 2, Affidavit of Baylor Blanchard, at ¶ 2. The meeting occurred in a non-public setting, and Ms. Fee desired and expected the meeting and the communications occurring within the meeting to be confidential and confined to the participants within the meeting. *See* Declaration of Julie Meehan Fee attached as Exhibit A-1, at ¶¶ 4-5. Mr. Blanchard recorded the meeting. *See* First Amended Complaint, Exhibit 2, Blanchard Aff., ¶ 3. At no time during the meeting was Ms. Fee aware Mr. Blanchard or anyone else was recording the meeting.² *See* Fee Dec., ¶¶ 6-7. At no time did Ms. Fee consent to the meeting

² There was an exchange between meeting participants while the recording was already in progress in which no meeting participants responded to a suggestion by Mr. Horning to record the meeting and no one, including Ms. Fee, provided consent, as follows:

Chuck Horning: Is anybody taking notes or recording this?

Baylor Blanchard: She is.

being recorded. *See* Fee Dec., ¶¶ 8, 10. The first time Ms. Fee learned the meeting had been recorded was after the meeting occurred, and she learned of this information through third parties who had informed Ms. Fee a recording of the meeting had occurred, a transcript of the recording had been generated, and that transcript was being publicly circulated by Plaintiff, including to Telluride community members and business associates of Ms. Fee. *See* Fee Dec., ¶ 9; *see also*, Cease and Desist Letter attached as Exhibit A-2. Ms. Fee learned further details of the recording when Plaintiff filed the First Amended Complaint, which added paragraphs 41 through 52 and Exhibit 2. *See* Fee Dec., ¶ 10. Given Ms. Fee’s non-consent to the recording of the meeting in which she was a participant and had a desire and expectation for confidentiality, Mr. Blanchard’s recording of the meeting violates California law.³ *See supra*. Accordingly, the allegations and

Chuck Horning: Oh.

Lupe Mendoza: Yeah, I’m taking notes. But should we record?

See First Amended Complaint Exhibit 2, Transcript, at 13:12-17. Indeed, Ms. Mendoza’s above comment, confirming she is taking notes and inquiring whether to record suggests Ms. Mendoza also did not have knowledge Mr. Blanchard was recording, further disputing Mr. Blanchard’s assertion that he informed each of the meeting participants that the meeting would be recorded and that each of the participants consented to the recording. *See* First Amended Complaint, Ex. 2, Blanchard Aff., at ¶ 8.

Further, Mr. Blanchard’s Affidavit suggests he obtained consent from the meeting participants in the meeting room (“I informed each of the participants **in the meeting** that it would be recorded. They each consented to the recording.” First Amended Complaint, Ex. 2, Blanchard Aff., at ¶ 8 (emphasis added)). However, this suggestion contradicts other statements made by Mr. Blanchard to investigators where he asserts the meeting participants consented to being recorded prior to the meeting while in the lobby.

³ Ms. Mendoza’s apparent non-consent to the recording of the meeting may independently form the basis of a California law violation, apart from Ms. Fee’s non-consent. It is unclear as to whether any of the other meeting participants also did not consent to the recording of the meeting without discovery on this issue.

material contained within the First Amended Complaint directly drawn from that unlawfully obtained recording, specifically paragraphs 41 through 52 and the transcript portion of Exhibit 2, should be stricken as impertinent or scandalous. *See* C.R.C.P. 12(f); ***Koch***, 140 Colo. at 117-118; Cal. Penal Code § 632 (d); ***Frio***, 203 Cal. App. 3d at 1492.

C. The allegations and exhibit portion at issue serve no discernable purpose other than to attempt to inflame prejudice against Ms. Fee and the other Defendants.

Because paragraphs 41 through 52 and the transcript contained in Exhibit 2 of the First Amended Complaint simply reiterate and reinforce the same content and theme alleged throughout the Complaint and because this material was drawn from an unconsented recording in violation of California law, Plaintiff's use of this material serves no purpose other than to attempt to harm Ms. Fee and the other Defendants. This case is in its most preliminary stages. It is not "at issue" yet as the parties are briefing C.R.C.P. 12(b)(5) motions contemporaneously with the filing of the instant Motion. Discovery has not begun and a protective order has not yet been entered. Ms. Fee has no other practical avenue of relief available but to file a motion to strike. The danger of unfair prejudice to Ms. Fee outweighs the probative value of the inclusion of the First Amended Complaint paragraphs and exhibit portion at issue. The allegations and transcript at issue create a misleading appearance of evidentiary legitimacy to the public and the Court; the statements contained in the allegations and transcript are searchable in the public forum; Plaintiff is attempting to "end-run" around exclusionary evidentiary principles that will apply later in litigation; Plaintiff is attempting to magnify reputational risk to Ms. Fee and the other Defendants; and the inclusion of the material at issue attempts to enhance the credibility of Plaintiff's allegations despite questionable provenance or ability to authenticate. As such, paragraphs 41 through 52 and the transcript portion of Exhibit 2 should be stricken as calculated to cause harm to Ms. Fee. *See*

C.R.C.P. 12(f); ***Koch***, 140 Colo. at 118.

WHEREFORE, for the reasons stated herein, Ms. Fee respectfully requests the Court order as follows:

- A. Strike paragraphs 41 through 52 of the First Amended Complaint and the transcript portion of Exhibit 2; and
- B. Grant Defendant Fee such other and further relief as the Court deems just and proper.

Respectfully submitted,

Hall & Evans, L.L.C.

/s/ Kendra K. Smith
Kendra K. Smith, #51633
Andrew D. Ringel, #24762

Counsel for Defendant Julie Meehan Fee

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of June, 2026, a true and correct copy of the foregoing Motion to Dismiss First Amended Complaint Pursuant to C.R.C.P. 12b(5) from Defendant Julie Meehan Fee was electronically filed with the Court and served upon all counsel of record via Colorado Courts E-Filing system.

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